

Opinion of the Court

Still, the question whether a plaintiff states a claim for relief “goes to the merits” in the typical case, not the justiciability of a dispute, *id.*, at 92, and conflation of the two concepts can cause confusion. This is the case with the Tenth Amendment discussion in *Tennessee Electric*. The *Tennessee Electric* Court noted that “[a] distinct ground upon which standing to maintain the suit is said to rest is that the acts of the Authority cannot be upheld without permitting federal regulation of purely local matters reserved to the states or the people by the Tenth Amendment.” 306 U.S., at 143. The Court rejected the argument, however, concluding the Tenth Amendment did not give one business a right to keep another from competing. *Id.*, at 144 (“The sale of government property in competition with others is not a violation of the Tenth Amendment”).

The Court then added the sentence upon which the Court of Appeals relied in the instant case, the sentence that has been the source of disagreement among Courts of Appeals:

“As we have seen there is no objection to the Authority’s operations by the states, and, if this were not so, the appellants, absent the states or their officers, have no standing in this suit to raise any question under the amendment.” *Ibid.*

The quoted statement was in the context of a decision which held that business competitors had no legal injury, and the word standing can be interpreted in that sense. On this reading, the statement reiterated an earlier point. The statement explained that the States in which the TVA operated exempted it from their public utilities regulations; and that even if the States had not done so and the TVA had violated those regulations, the regulations were for the States to enforce. See *id.*, at 141–142. They conferred no private right of action on business competitors. This reading is consistent with the *Tennessee Electric* Court’s use of the term “standing” elsewhere in its opinion to refer to